

Terms of Service (Draft for Advocate Review)

[COMPANY LEGAL NAME] · Kova Agent · Last updated: [DATE]

DRAFT FOR DISCUSSION — NOT LEGAL ADVICE — REVIEW WITH KENYAN ADVOCATE

Adapted from live template: `templates/pages/terms.html`. **Plan v2 pricing**. Deploy reviewed version to `/terms/`.

1. Agreement to terms

These Terms constitute a binding agreement between you and [COMPANY LEGAL NAME] ("Kova," "we," "us") governing use of the Kova Agent platform (the "**Service**").

By creating an account you agree to these Terms and our Privacy Policy.

2. Eligibility

- You must be at least **18** years old
 - You must have authority to bind your business
 - Accurate registration information required
 - You are responsible for account credentials
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3. Description of the service

Kova is a **Business Intelligence Operating System** using AI agents to research, create, schedule, publish, and manage social content across multiple platforms, including:

- AI content generation, scheduling, publishing
 - OAuth-connected social account management
 - Engagement monitoring and suggested replies
 - Analytics, Daily Briefs, competitor intelligence
 - Kova Links, lead capture, email marketing
 - Teams and multi-brand management
 - WhatsApp Business features on eligible plans
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4. Accounts & social connections

4.1 You are responsible for all activity under your account.

4.2 Connecting social accounts authorises Kova to act within permissions you grant. You represent you have authority for each account.

4.3 You may disconnect accounts at any time; tokens are cleared per our Privacy Policy.

4.4 We are not liable for third-party API or policy changes affecting functionality.

5. Subscriptions & payment (Plan v2)

5.1 **Plans.** Subscriptions are offered in four public tiers (Agency by approval):

Tier	KES/month	USD/month
Starter (Jipange)	499	4
Growth (Kazi)	1,499	11
Pro (Biashara)	2,999	22
Agency (Wakala)	7,999	59

Feature limits (posts, tokens, WhatsApp caps, etc.) are defined in the Service and docs/PLAN_V2_SPEC.md.

5.2 **Billing.** Monthly in advance via **M-Pesa** and/or **Stripe**. You authorise recurring charges.

5.3 **Free trial. 7-day trial** with Starter-tier limits unless otherwise stated. Converts to paid unless cancelled before trial end.

5.4 **Cancellation.** Cancel anytime; access continues until period end. **No refunds** for partial months unless required by law.

5.5 **Price changes. 30 days'** notice; continued use constitutes acceptance.

5.6 **Overdue payments.** Suspension or downgrade for non-payment.

5.7 **Fair use.** Hard stops at 100% of plan caps per metering policy.

6. Content & intellectual property

6.1 **Your content.** You retain rights to content you create or upload. You grant Kova a limited licence to process and distribute it solely to operate the Service.

6.2 **AI-generated content.** Treated as your content; you must review before publish where required by your settings.

6.3 **Our IP.** Platform, code, branding, and documentation remain **[COMPANY LEGAL NAME]** property.

6.4 **Feedback.** We may use feedback without obligation.

7. Acceptable use

You shall not use the Service to violate law, publish harmful or deceptive content, spam, impersonate, hack, or disrupt the Service. See Acceptable Use Policy.

8. Third-party platforms

You must comply with Meta, WhatsApp, X, LinkedIn, TikTok, and other platform terms. You are responsible for content published from your accounts.

9. Disclaimers

THE SERVICE IS PROVIDED "**AS IS**". WE DISCLAIM WARRANTIES TO THE MAXIMUM EXTENT PERMITTED BY LAW. AI OUTPUTS MAY BE INACCURATE — YOU ARE RESPONSIBLE FOR REVIEW.

10. Limitation of liability

TO THE MAXIMUM EXTENT PERMITTED BY KENYAN LAW, KOVA'S LIABILITY IS LIMITED TO FEES PAID IN THE **TWELVE (12) MONTHS** PRECEDING THE CLAIM. NO INDIRECT OR CONSEQUENTIAL DAMAGES.

11. Indemnity

You indemnify Kova against claims arising from your content, misuse, or breach of these Terms.

12. Termination

We may suspend or terminate for breach. You may terminate by cancelling subscription. Surviving clauses: IP, liability, indemnity, governing law.

13. Governing law

Laws of **[JURISDICTION: Kenya]**. Courts of **[Nairobi, Kenya]** unless arbitration agreed.

14. Contact

[COMPANY LEGAL NAME] · [REGISTERED ADDRESS] · [SUPPORT EMAIL]

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